4/17/2024 4:41 PM
Velva L. Price
District Clerk
Travis County
D-1-GN-24-001694
Stephanie Garza

CAUSE NO. D-1-GN-24-001694

STATE FARM MUTUAL AUTOMOBILE INSURANCE COMPANY, *Plaintiff*	§	**IN THE DISTRICT COURT**
v.	§	**419TH JUDICIAL DISTRICT**
CATASTROPHIC SOLUTIONS LLC d/b/a HAIL SPECIALISTS, *Defendant*	§	**TRAVIS COUNTY, TEXAS**

DEFENDANT'S ORIGINAL ANSWER AND COUNTERCLAIM

TO THE HONORABLE JUDGE OF SAID COURT:

COMES NOW, Defendant/Counter-Plaintiff, CATASTROPHIC SOLUTIONS LLC d/b/a HAIL SPECIALISTS, hereinafter "DEFENDANT." Defendant herein files its original answer and counterclaim in the above entitled and numbered cause of action and would respectfully show the Court as follows:

I.
General Denial

1. As authorized by Rule 92 of the Texas Rules of Civil Procedure, Defendant denies each and every allegation contained in Plaintiff's Original Petition and all amendments or supplements thereto, and demands strict proof thereof by a preponderance of the evidence of all Plaintiff's allegations.

II.
Affirmative Defenses

2. Pleading further, Defendant avers that to the extent Plaintiff failed to mitigate its damages as required by law, any award must be reduce by Plaintiff's failure in this regard.

III.
Counterclaim: Quantum Meruit

3. Pleading further, Defendant provided services or materials to Plaintiff, who accepted the services or materials, under such circumstances as would reasonably provide notice to Plaintiff that Defendant expected to be paid.

IV.
Right to Amend

4. Defendant respectfully reserves the right to amend this Answer and Counter-Claims to Plaintiff's allegations after it has had an opportunity to more closely investigate the claims, as is its right and privilege under the Texas Rules of Civil Procedure and the laws of the State of Texas.

V.
Rule 193.7 Notice

5. Defendant hereby gives notice of intent to utilize items produced in discovery in the trial of this matter and the authenticity of said items is self-proven as per TRCP 193.7

VI.
Designated Email for Service

6. Defendant hereby notifies all parties that the designated email for service for all matters including but not limited to discovery, motions, notices, and pleadings is: **eserve@hlalawfirm.com.**

VII.
Jury Trial

7. Defendant hereby respectfully requests a jury trial.

VIII.
Required Disclosures

8. Pursuant to Texas Rule of Civil Procedure 194, you are required to disclose, within 30 days of filing of this answer, the information and material described in Rule 194.

WHEREFORE, PREMISES CONSIDERED, Defendant prays that after due proceedings, judgment be rendered that Plaintiff take nothing by its lawsuit, and that Court award Defendant all relief to which it is entitled in law or in equity.

Respectfully submitted:
HUSAIN LAW + ASSOCIATES, P.C.

By: */s/ Derek Mueller*
DEREK MUELLER
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Houston, Texas 77057
Telephone (713) 800-1200
Facsimile (713) 800-0786
Email: eserve@hlalawfirm.com
COUNSEL FOR DEFENDANT/
COUNTER-PLAINTIFF

CERTIFICATE OF SERVICE

I certify that a true and correct copy of the foregoing has been forwarded to the all known counsel of record via Electronic Court Filing on the 18th of April, 2024.

/s/ *Derek Mueller*
DEREK MUELLER

Automated Certificate of eService

This automated certificate of service was created by the efiling system. The filer served this document via email generated by the efiling system on the date and to the persons listed below. The rules governing certificates of service have not changed. Filers must still provide a certificate of service that complies with all applicable rules.

Citlali Vasquez on behalf of Derek Mueller
Bar No. 24046494
cvasquez@hlalawfirm.com
Envelope ID: 86837328
Filing Code Description: Pleading (Counterclaim)
Filing Description: DEFENDANTS ORIGINAL ANSWER AND COUNTERCLAIM
Status as of 4/19/2024 2:19 PM CST

Associated Case Party: STATE FARM MUTUAL AUTOMOBILE INSURANCE COMPANY

Name	BarNumber	Email	TimestampSubmitted	Status
W. PaulMiller		wpm-svc@germer-austin.com	4/18/2024 9:46:19 PM	SENT
Jack Bumgardner		jbumgardner@germer-austin.com	4/18/2024 9:46:19 PM	SENT
William Atallah		watallah@germer-austin.com	4/18/2024 9:46:19 PM	SENT